

Amendment No. 1 to SB1150

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1150

House Bill No. 846*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 62, Chapter 76, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(2) "Board" means a board, commission, agency, or other governmental entity created pursuant to this title or title 4 that issues a license, certificate, or registration to engage in a profession or occupation authorized under this title or title 4;

(3) "Contractor" means a third-party contractor of a board that conducts testing for the issuance or renewal of a license, certificate, or registration by the board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration; and

(4) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data.

(b) A board or contractor shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a

prerequisite to taking an exam or test for licensure, certification, or registration or completing continuing education requirements for the purpose of obtaining, maintaining, or renewing a license, certificate, or registration issued under this title.

(c) This section does not prohibit a board or contractor from obtaining:

(1) A physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements; or

(2) A physical or digital copy of an individual's fingerprints or other identifying information as required by another law for the purpose of conducting a criminal background check.

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(2) "Board" means the division or a board, commission, agency, or other governmental entity created pursuant to this title or title 4 that issues a license, certificate, or registration to engage in a profession or occupation authorized under this title or title 4;

(3) "Contractor" means a third-party contractor of a board that conducts testing for the issuance or renewal of a license, certificate, or registration by the board, or that facilitates the completion of continuing education requirements by the holder of such license, certificate, or registration; and

(4) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data.

(b) A board or contractor shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a prerequisite to taking an exam or test for licensure, certification, or registration or completing continuing education requirements for the purpose of obtaining, maintaining, or renewing a license, certificate, or registration issued under this title.

(c) This section does not prohibit a board or contractor from obtaining a physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements.

(d) This section does not prohibit or limit a board, the division, or a contractor acting on behalf of a board from obtaining fingerprints or other identifying information as required by § 63-1-116 or another law for the purpose of conducting a criminal background check.

SECTION 3. Tennessee Code Annotated, Title 49, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Agency" means the department of education, state board of education, or other state or local entity that issues a license;

(2) "Biometric data" means data generated by automatic measurements of an individual's biological characteristics, including, but not limited to, a palm print or scan, voiceprint, eye retina or iris scan, physical or digital photograph, video or audio recording, physical or digital fingerprints, or other unique biological pattern or characteristic, that is used to identify a specific individual;

(3) "Contractor" means a third-party contractor of an agency that conducts testing for the issuance or renewal of a license by the agency, or that

facilitates the completion of continuing education requirements by the holder of such license;

(4) "License" means a Tennessee educator license or other temporary certificate or permit authorizing an individual to teach in grades kindergarten through twelve (K-12) in this state; and

(5) "Qualifying objection" means a religious or sincerely held belief or objection to the collection of biometric data.

(b) An agency or contractor shall provide a reasonable accommodation to an individual with a qualifying objection from a requirement to provide biometric data as a prerequisite to taking an exam or test for licensure, certification, or registration or completing continuing education requirements for the purpose of obtaining, maintaining, or renewing a license, certificate, or registration issued under this title.

(c) This section does not prohibit an agency or contractor from obtaining:

(1) A physical or digital copy of an individual's fingerprints or government-issued photo identification card for the purpose of ensuring that the individual is qualified to take a test or exam or complete continuing education requirements; or

(2) A physical or digital copy of an individual's fingerprints or other identifying information as required by another law for the purpose of conducting a criminal background check.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it, and applies to contracts entered into, renewed, or modified on or after the effective date of this act.